

TENTATIVE RULINGS

FOR: July 22, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBIla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. B Zoom

Join by Video

<https://www.zoomgov.com/j/1618700612?pwd=3bjaxoPtjuWe7B7JQWBQ8muwSuMiXC.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

**** All matters originally set in Dept. A will be heard in Dept. B
Except as Specifically Noted Below****

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 9:30 a.m.

****at 9:30 a.m.****

Jane Doe v. Joseph Tolfree et al

23CV000759

MOTION FOR CONTEMPT

TENTATIVE RULING: The motion, construed as a motion for an order to show cause, is GRANTED. Defendant Duffy's Napa Valley Rehab, LLC (Duffy's) is directed to serve Notice of Entry of Order on Plaintiff and on Brian Archer. Service on Brian Archer shall be made with the service of the Order to Show Cause re: Contempt discussed below.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant Duffy's Napa Valley Rehab, LLC, (Duffy's) moves, pursuant to California Code of Civil Procedure sections 2025.480(k), 2023.030(b)-(c), and 2023.010(g), for an order holding non-party Brian Archer in contempt for willful disobedience of discovery rulings/orders issued by the Court-appointed Discovery Referee in this action.

Civil contempt proceedings "[are] brought under the provisions of sections 1209 through 1222 of the Code of Civil Procedure. Such a proceeding . . . 'is not a criminal action or proceeding. It is a special proceeding, criminal in character, governed by the provisions of the Code of Civil Procedure . . . not for the punishment of an offense against the state, but intended to implement the inherent power of the court to conduct the business of the court and enforce the lawful orders of the court.'" (*Pacific Tel. & Tel. Co. v. Super. Ct. for Los Angeles Co.* (1968) 265 Cal.App.2d 370, 371-372.

"The elements of proof necessary to support punishment for contempt are: (1) a valid court order, (2) the alleged contemnor's knowledge of the order, and (3) noncompliance." (See *Inland Counties Reg'l Ctr., Inc. v Super. Ct.* (2017) 10 CA5th 820, 827.)

The Court finds that Duffy's has made a showing, as to each element, sufficient to support the issuance of an order to show cause. (See Declaration of Alexander M. Farcas, exhibits attached thereto, and proof of service thereof on Brian Archer; see also April 8, 2026 Order of Referee Justice James Lambden (Ret.) (Discovery Referee) Granting Defendant's Motion to Compel Further Deposition of Brian Archer and April 8, 2026 Discovery Referee's Report of Orders After April 8, 2026, DMC, each filed with the Court on April 28, 2026.)

Plaintiff is directed to submit a proposed order to show cause (OSC) re: contempt that is directed to the accused and sets the hearing for August 28, 2026, at 8:30 a.m. in Dept. B. (See Code Civ. Proc. § 1212; see also *In re M.R.* (2013) 220 Cal.App.4th 49, 58.) Due process requires that the OSC provide adequate notice of the specific charges at issue in the contempt proceeding. (*Moore*

v. Super. Ct. (2020) 57 Cal.App.5th 441, 456.) The Court notes that, upon entry by the Court, the OSC must be served on Mr. Archer in the same manner as a summons. (See Code Civ. Proc. §§ 1015, 1016 (statutory provisions for service of motions do not apply to service of any paper to bring a party into contempt); see also *Cedars-Sinai Imaging Medical Group v. Super. Ct.* (2000) 83 Cal.App.4th 1281, 1286-87 [“[u]nless the citee has concealed himself from the court, he must be personally served with the affidavit and the order to show cause; otherwise, the court lacks jurisdiction to proceed”].)

****at 9:30 a.m.****

Mark Andrews v. Richard Rockwell et al

24CV000304

DEFENDANT ENTERPRISE RENT-A-CAR CO. OF SAN FRANCISCO, LLC’S MOTION
TO STRIKE THE FIRST AMENDED COMPLAINT AND DEMURRER

TENTATIVE RULING: The Court has been informed that the parties stipulated to a continuance of the present matter to coincide with the pending *Ex Parte* Hearing in this matter. As such, the matter is CONTINUED to Friday, July 24, 2026, at 11:30 a.m. in Dept. A.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Estate of George W Turner

25PR000048

STATUS HEARING RE: FINAL DISTRIBUTION

APPEARANCE REQUIRED. There is no new Status Report on file. Petitioner is therefore directed to appear and update the Court on the status of the case.

Conservatorship of Joaquin Sebastian Reynaldo

25PR000065

REVIEW – 1ST YEAR

TENTATIVE RULING: The matter is CONTINUED to August 19, 2026, at 8:30 a.m. in Dept. B to allow the Conservators to file: Care Plan (Judicial Council form GC-355/356). The Clerk is directed to send notice to the parties, along with a copy of this Minute Order.

Conservatorship of James R. Gill

25PR000132

REVIEW – 1ST YEAR